



CITY ATTORNEY'S OFFICE

Municipal Building
2101 O'Neil Avenue, Room 308
Cheyenne WY 82001

Staff Report

TO: Governing Body of the City of Cheyenne
FROM: Stefanie Boster, Cheyenne City Attorney
DATE: 1/71/2024
RE: City Councilmember Compensation

Wyoming law provides that the salaries of all officers including the salaries of the Mayor and each councilman shall be fixed by ordinance. Wyo. Stat. § 15-3-205(a)(i,ii). The statute further provides that “[a]ll other officers of the city shall receive the compensation fixed by ordinance except as otherwise provided by law.” Wyo. Stat. § 15-3-205(b). The term “salary” and “compensation” are not defined in this ordinance and appear to be used interchangeably under this statute.

In the City of Cheyenne, ordinance is fixed by a non-codified ordinance. Changes to the most recent ordinance, Ordinance No. 4431, was published on May and effective on January 1, 2023. Prior to this change, Ordinance No. 3914 regarding City Councilmember Compensation was published in March of 2011 and Ordinance No. 3419 was published on December 30, 2000. All three most recent ordinance fix the compensation of councilman, not salary. The attached proposed ordinance adds the word “salary” specifically for “constituent services” to the ordinance.

Notably, while the salary of members of the City Council can be changed by ordinance, it cannot be effective during the officials’ term. Wyo. Const. Art. 3, § 32; Art. 14 § 1; Wyo. Stat. § 15-3-205(b). The Wyoming Constitution provides in pertinent part that, “[n]o law shall extend the term of any public officer or increase or diminish his salary or emolument after his election or appointment ...” Wyo. Const. Art. 3, § 32.

The Wyoming Supreme Court has interpreted the language in Art. 3, § 32 to mean that, “[w]hen it says that the salary of a public officer shall not be increased or diminished after his election, it means that the salary or compensation for the term to which he was elected shall not be changed after, but becomes fixed as of the date of the election.” *Nickerson v. Winslow*, 22 Wyo. 259, 268-269, 138 P. 184, 186, *rehg denied* 22 Wyo. 259, 140 P. 834 (1914), quoted in *Board of County Com’rs of County of Platte v. State ex rel Yeadon*, 971 P.2d 129 (Wyo. 1998).

Thus, pursuant to the Wyoming Constitution, state statute and relevant case law, changes to the ordinance regarding City Council Member compensation will not impact current members of the City Council.

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING ORDINANCE NO. 4431, WHICH ESTABLISHED A NEW COMPENSATION SCHEDULE FOR MEMBERS OF THE CITY COUNCIL OF THE CITY OF CHEYENNE, TO CLARIFY THE MANNER IN WHICH COMPENSATION IS TO BE COMPUTED AND PROVIDING FOR AN EFFECTIVE DATE."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That Ordinance No. 4431 is amended as follows:

Section 2. Compensation.

- A. Members of the City Council shall receive either compensation, or a salary or for constituent services to offset expenses, in the amount Two Thousand Dollars (\$2,000.00) a month. Council Members may elect to decline any portion of the compensation or salary.
- B. In the event a City Council Member does not hold office for an entire month, ~~he or she~~ their salary or compensation will be ~~compensated on a per diem~~ calculated on a pro rata basis (\$2,000.00 divided by the number of days in the month, multiplied by the number of days in office during that month). For the first day and the last day that the member holds office, he or she shall be entitled to one-half of the ~~per diem~~ daily rate.
- C. Cheyenne City Council Members will be compensated for non-local travel on City related business according to established City policy applicable to City employees.

Section 3. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional or otherwise unlawful, such declaration shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 4. This Ordinance will be in full force and effect on January 1, 2025, and will apply to City Council Members whose terms commence in 2025 and thereafter.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle